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KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
SAN JOSE DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA; GAVIN NEWSOM,
in his official capacity as Governor;

BETH MCGOWEN and JULIE EMEDE,
in their official capacities as Presiding Judges;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS;

and all related officials,
judges, and agents acting under color of law,

Defendants.

) Case No. :

)
) **CONSOLIDATED EVIDENCE**
) **BINDER - EXHIBIT A**
) **VOLUME 10 of 10**

) **IN SUPPORT OF**

) **NOTICE OF REMOVAL,**
) **CIVIL RICO COMPLAINT,**
) **EMERGENCY MOTION FOR TRO,**
) **MOTION TO DISMISS CRIMINAL**
) **CASE B2402220 WITH PREJUDICE**

) **DATE:**

) **TIME:**

) **DEPT:**

CONSOLIDATED EVIDENCE BINDER - EXHIBIT A - VOLUME 10 of 10
(SET 7 - VIDEO/AUDIO EVIDENCE + SET 8 - AUTHENTICATION + APPENDICES)
In Support of:

- **Notice of Removal** (28 U.S.C. §§ 1331, 1343, 1441, 1443, 1455)
- **Civil RICO Complaint** (18 U.S.C. §§ 1961–1968)
- **Emergency Motion for Temporary Restraining Order**
- **Motion to Dismiss Criminal Case B2402220 With Prejudice** (Fed. R. Civ. P. 65(b))

Related State Court Matters Removed:

- **B2402220** (Criminal Case, Santa Clara County Superior Court)
- **22DV000779** (Domestic Violence Case, Santa Clara County Superior Court)
- **22FL003144** (Family Law / Divorce / Custody Case)
- **24CV441024** (Name Change Case, Santa Clara County Superior Court)
- **200000002626999** (DCSS Wage Garnishment and Arrears Enforcement Case)

Respectfully submitted,

DATED: June 20, 2026

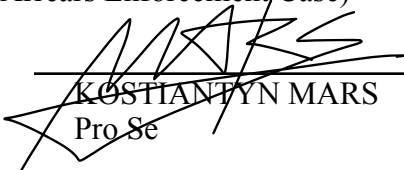

KOSTIANTYN MARS
Pro Se

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EXHIBIT A-63

DENIAL OF ACCESS TO BODY CAMERA RECORDINGS OF POLICE OFFICERS WHO COMMITTED UNLAWFUL ARREST ON JUNE 14, 2024 (10/30/2024)

Description: Denial by Sunnyvale PD of access to body camera recordings of the June 14, 2024 unlawful arrest - in response to my request dated October 21, 2024.

Date: October 30, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/sunnyvale-police-bodycam-recordings-denial-2024-10-30.pdf>

Scan QR Code for instant download of the complete document:



Follow up to your Access Sunnyvale service request: SR-00093342

CRM:002090001846

1 message

AccessSunnyvale AP <AccessSunnyvale@sunnyvale.ca.gov>
To: SR-00093342

Wed, Oct 30, 2024 at 9:17 AM

Hello Kostiantyn,

The City of Sunnyvale is in receipt of your public records act request dated 10/21/2024 for the following records: copy of police report 24-4882. We have determined that your request for records is not disclosable, for those records are unable to be released without a subpoena due to the nature of the charges.

I will be closing out this service request in the Access Sunnyvale system; however, should you have any questions please feel free to contact me at the Records Unit at 408-730-7101.



Best Regards,
Deuel Galla (Pronouns: He/His)

Senior Records Specialist

Department of Public Safety

Phone: 408-730-7101

Fax: 408-730-7705

DGalla@sunnyvale.ca.gov



Service Request details:

Service Request Number: SR-00093342

Submitted On: 10/21/2024 5:35 PM

Request Type: Public Records Request

Description: Hello, please provide police report, names, badge numbers, and bodycam records of police officers making arrest of Kostiantyn Mars on 06/14/2024 on address 1201 Sycamore Terrace 145 on allegations of violation of a restraining order.

Thank you

Initial Response Complete: No

EXHIBIT A-64

UNLAWFUL ARREST BY OFFICER CHASE MARTIN

(BADGE #17209, SUNNYVALE PD, CA)

(JUN. 14, 2024)

Description: Video recording of unlawful arrest by Officer Chase Martin (Badge #17209, Sunnyvale PD, CA)

Date: June 14, 2024

ACCESS FULL VIDEO

Full Video:

https://drive.google.com/file/d/1O6yLk2-C_duS0uSko9erA9-ngP5xwnZ7/preview

Scan QR Code for instant access to full video:



EXHIBIT A-65
HEARING BEFORE JUDGE THOMAS KUHNLE
(AUGUST 15, 2024)

Description: Hearing before Judge Thomas Kuhnle: Denial of hearing, blocking criminal case from resolution, fraud on court by judge Kuhnle - who is lying to Petitioner during hearing in attempt of unlawful incarceration and extortion.

Date: August 15, 2024

ACCESS FULL VIDEO

Full Video:

https://drive.google.com/file/d/1DAaItUbRjYs_O_sUDpXiWYWExHtzG6ql/preview

Scan QR Code for instant access to full video:

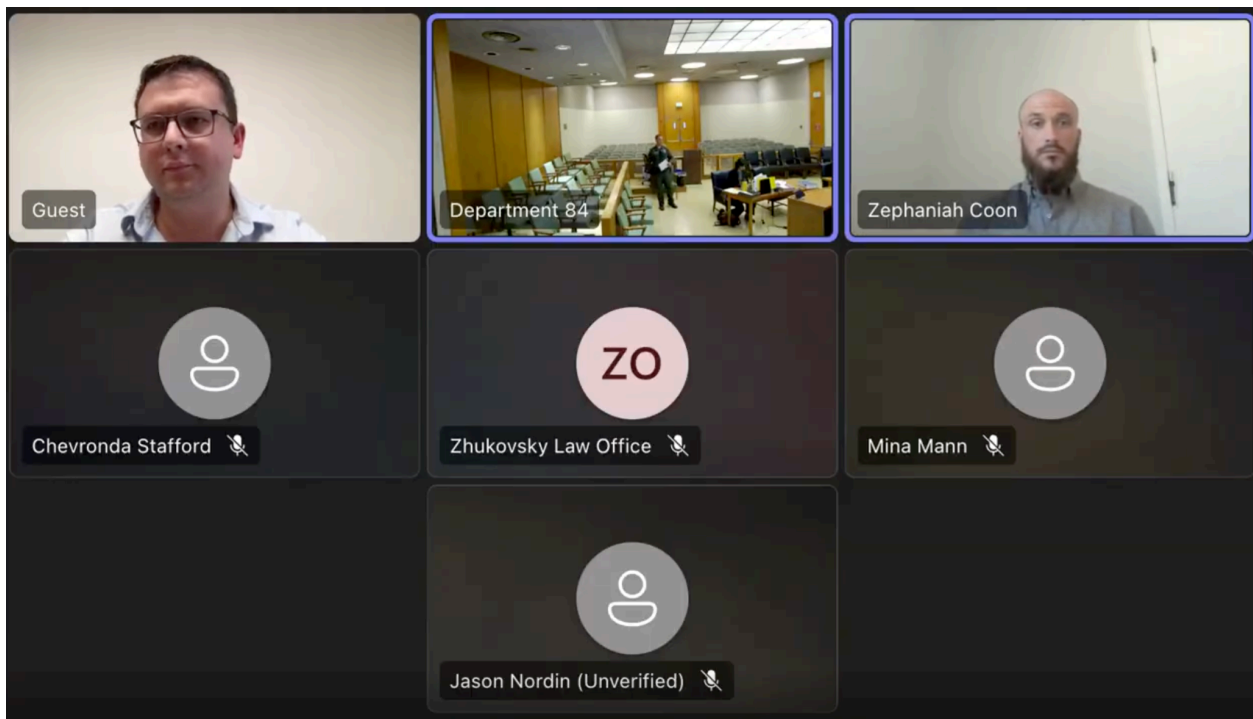


EXHIBIT A-66
HEARING BEFORE JUDGE BENJAMIN WILLIAMS
(AUGUST 19, 2024)

Description: Hearing before Judge Benjamin Williams: Denial of hearing, blocking criminal case from resolution, fraud on court by judge Williams - who is lying to Petitioner during hearing in attempt of unlawful incarceration and extortion.

Date: August 19, 2024

ACCESS FULL VIDEO

Full Video:

<https://drive.google.com/file/d/1dTvasJPaRW-MuYK9gpe0oagzWEdQEw73/preview>

Scan QR Code for instant access to full video:

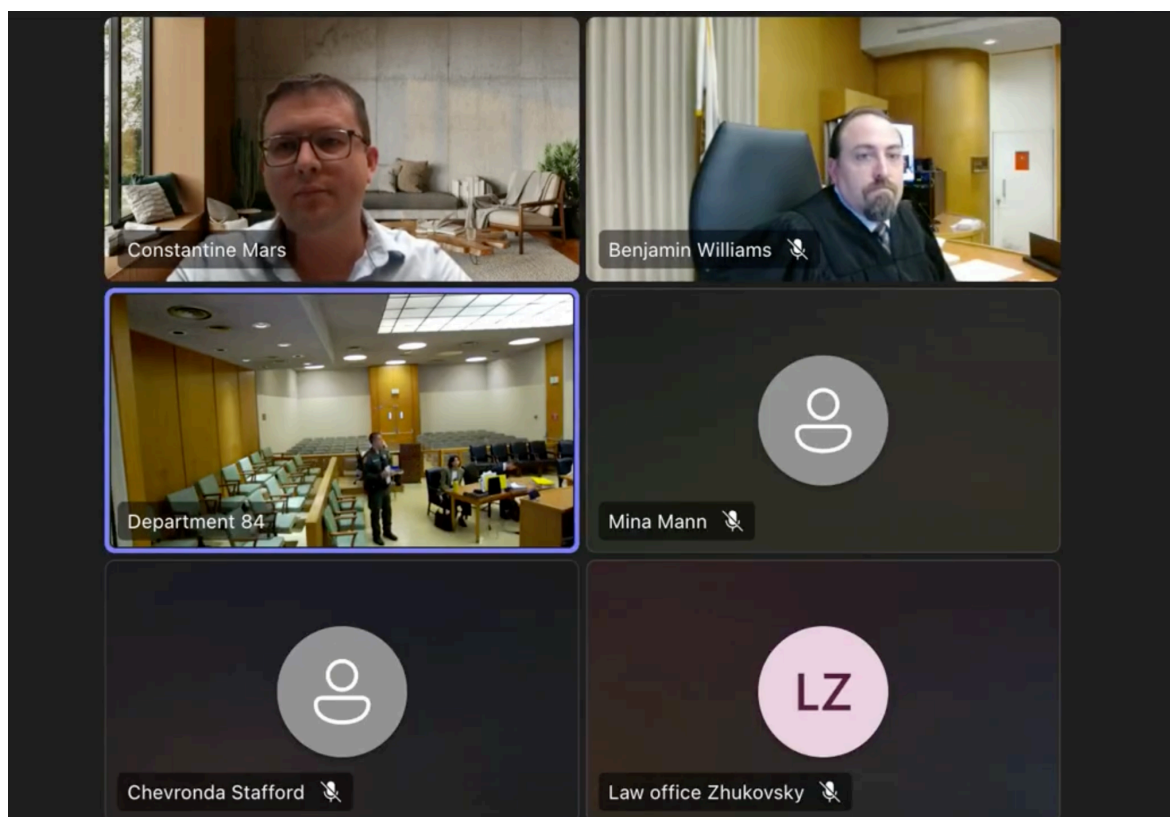


EXHIBIT A-67

HEARING BEFORE JUDGE BENJAMIN WILLIAMS: DENIAL OF HEARING AND ISSUANCE OF UNLAWFUL BENCH WARRANT (AUGUST 21, 2024)

Description: Hearing before Judge Benjamin Williams: Denial of hearing and issuance of unlawful bench warrant in attempt of unlawful incarceration of Petitioner - despite presence of Petitioner and his attorney on hearing and request to hear matter, and dismiss the case.

Date: August 21, 2024

ACCESS FULL VIDEO

- **August 21, 2024 (Williams) p.1. Full Video:**

https://drive.google.com/file/d/1Sn0_ZuVeTKEEEPlCn5eOSLtZ3CM4LFZ_/preview

Scan QR Code for instant access to full video:



- **August 21, 2024 (Williams) p.2 - Issuance of bench warrant. Full Video:**

<https://drive.google.com/file/d/1e60zP91mn3hnodVQTVZB7xTjVwCBbVEC/preview>

Scan QR Code for instant access to full video:

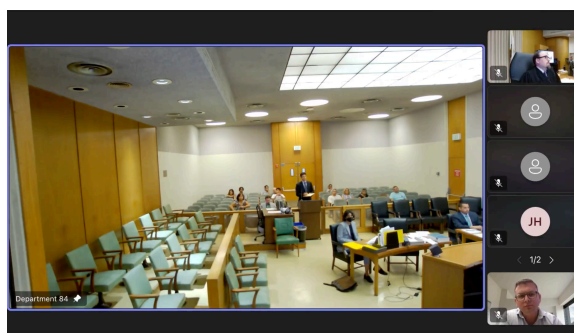


EXHIBIT A-68

RECORDINGS OF HEARINGS WHERE

DISQUALIFIED JUDGES ANDREA FLINT AND STEPHEN LOWNEY

WERE COMMITTING FRAUD ON COURT, EXTORTION AND RACKETEERING

ACTING OUTSIDE JURISDICTION AFTER DISQUALIFICATION

Description: Video Recordings of Hearings Where Disqualified Judges Andrea Flint and Stephen Lowney Were Committing Fraud on Court, Extortion And Racketeering Acting Outside Jurisdiction After Disqualification.

Date Range: 2022 - 2025

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/fraud-on-court.pdf>

Scan QR Code for instant download of the complete document:



INTERNAL CHRONOLOGICAL INDEX

Item	Title	Page
<u>1</u>	2023-11-13 Andrea Flint: Fraud on court, Falsification of bank statements, Using irrelevant bank statements, Falsification of community balances via removal of community expenses from statements, Extortion of money using financial fraud and coercive void court orders obtained via fraud on court - recording of hearing 2023-11-13 (part 3)	10
<u>2</u>	2024-02-07 Stephen Lowney: Fraud on court, Extortion of money, 401k funds, passport and documents of Petitioner's abducted son Max Mars under threats of unlawful incarceration and further malicious prosecution	11
<u>3</u>	2024-02-27 Disqualified judge Stephen Lowney: Denial of all matters and repetitive fraud on court while acting outside of his jurisdiction after his disqualification 2024-02-20	12
<u>4</u>	2024-03-21 Disqualified judge Stephen Lowney: Denial of all matters and repetitive fraud on court while acting outside of his jurisdiction after his qualification 2024-02-20	13

EXHIBIT A-68 - ITEM 1

2023-11-13 ANDREA FLINT:

FRAUD ON COURT, FALSIFICATION OF BANK STATEMENTS,
USING IRRELEVANT BANK STATEMENTS,
FALSIFICATION OF COMMUNITY BALANCES VIA REMOVAL OF
COMMUNITY EXPENSES FROM STATEMENTS,
EXTORTION OF MONEY USING FINANCIAL FRAUD AND
COERCIVE VOID COURT ORDERS OBTAINED VIA FRAUD ON COURT -
RECORDING OF HEARING 2023-11-13 (PART 3)

ACCESS FULL DOCUMENT

Full Video:

<https://drive.google.com/file/d/1wExZ1sA3v4F4mHgiXVRnEK6mQiFkLbD2/preview>

Scan QR Code for instant access to full video:



Partial Trial 2023-11-13 (part 3) Minute: 37:08

notifications on your iPhone in the future, just go to Settings > Notifications > Wallet, and turn on Allow Notifications.

Your September Balance as of Sep 30, 2021	Minimum Payment Due	Payment Due By
\$21.96	\$21.96	Oct 31, 2021

Account Information
Please go to Wallet or card.apple.com to schedule new payments or view existing payments.

Fraud on court by Nancy Roberts and Hanna Mars:
Using irrelevant bank statements from 2021 to falsify numbers of financial extortion orders granted by Nancy's criminal associate Andrea Flint - disqualified judge

Partial Trial 2023-11-13 before disqualified judge Andrea Flint
Exhibit O - statements from 2021 are irrelevant to divorce / separation date September 1, 2022

Nancy L. Roberts (Guest)

Prior Monthly Balance as of Aug 31, 2021	\$19.73
Prior Total Balance as of Aug 31, 2021	\$19.73
Total Balance as of Sep 30, 2021	\$21.96

EXHIBIT A-68 - ITEM 2

2024-02-07 STEPHEN LOWNEY:

**FRAUD ON COURT, EXTORTION OF MONEY, 401K FUNDS,
PASSPORT AND DOCUMENTS OF PETITIONER'S
ABDUCTED SON MAX MARS
UNDER THREATS OF UNLAWFUL INCARCERATION AND
FURTHER MALICIOUS PROSECUTION**

ACCESS FULL DOCUMENT

Full Recording:

https://drive.google.com/file/d/1j_I9dPqKY-onw9XCMGevyoy-fqhy9SAu/preview

Scan QR Code for instant access to full video:



**HEARING RECORDING
BEFORE THE JUDGE STEPHEN LOWNEY
FEBRUARY 7, 2024**

CASE NO. 22FL003144
Santa Clara County Superior Court

Submitted as Evidence in Federal Removal Proceedings
United States District Court
Western District of Texas

EXHIBIT A-68 - ITEM 3
2024-02-27 DISQUALIFIED JUDGE STEPHEN LOWNEY:
DENIAL OF ALL MATTERS
AND REPETITIVE FRAUD ON COURT
WHILE ACTING OUTSIDE OF HIS JURISDICTION AFTER HIS
DISQUALIFICATION 2024-02-20

ACCESS FULL DOCUMENT

Full Video:

<https://drive.google.com/file/d/1dnUS7UHUGiV-CvE1Ko4z4YaH5FoKhVIF/preview>

Scan QR Code for instant access to full video:

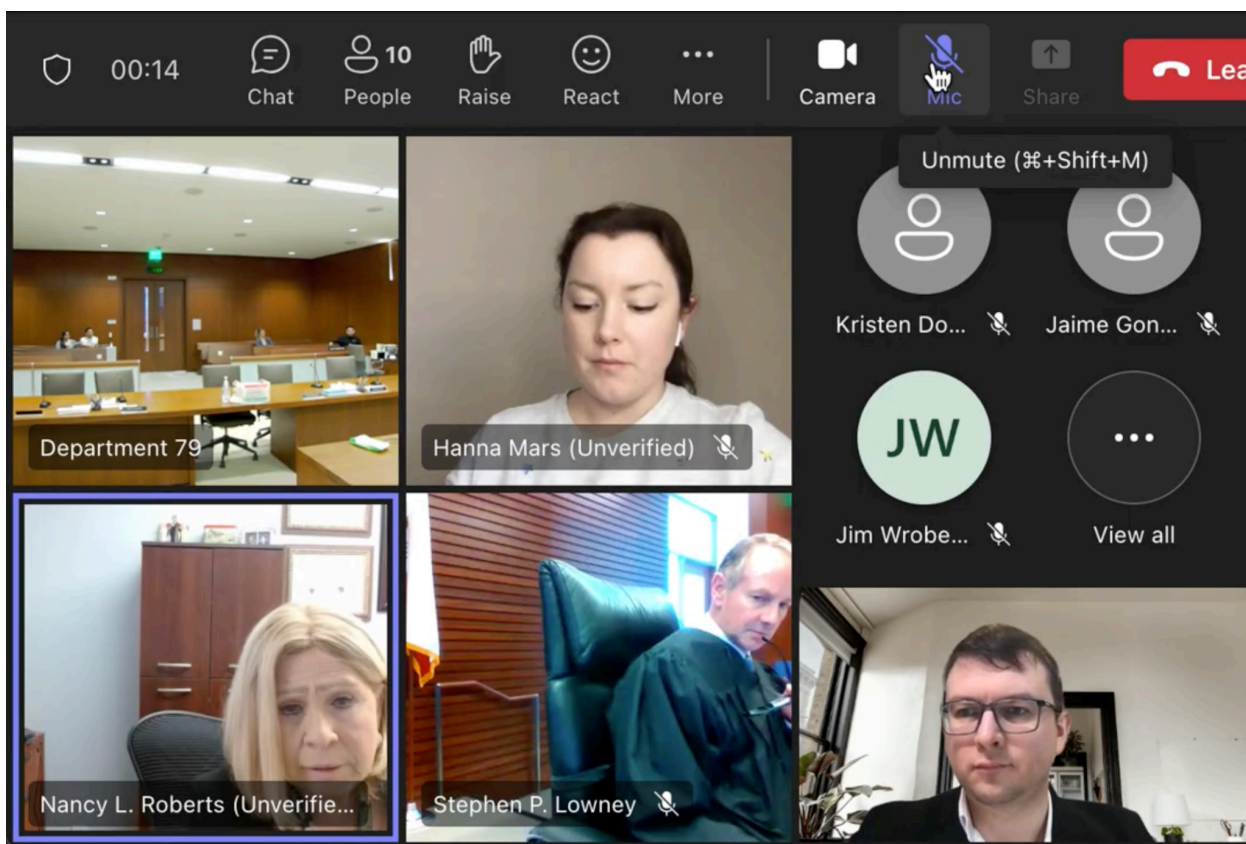


EXHIBIT A-68 - ITEM 4
2024-03-21 DISQUALIFIED JUDGE STEPHEN LOWNEY:
DENIAL OF ALL MATTERS
AND REPETITIVE FRAUD ON COURT
WHILE ACTING OUTSIDE OF HIS JURISDICTION AFTER HIS
QUALIFICATION 2024-02-20

ACCESS FULL DOCUMENT

Full Video:

https://drive.google.com/file/d/1a_Ij9DzDg20aNIZDCWNhNWGCqc4ZaL5K/preview

Scan QR Code for instant access to full video:



HEARING RECORDING
BEFORE DISQUALIFIED JUDGE STEPHEN LOWNEY
ACTING OUTSIDE OF HIS JURISDICTION AFTER DISQUALIFICATION
MARCH 21, 2024

CASE NO. 22FL003144
Santa Clara County Superior Court

Submitted as Evidence in Federal Removal Proceedings
United States District Court
Western District of Texas

EXHIBIT A-69

**CERTIFICATE OF SERVICE AND PROOF OF FILING
(TO BE AMENDED AFTER FILING)**

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/certificate-of-service.pdf>

Scan QR Code for instant download of the complete document:



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Email: legal@marsjustice.io

KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS
Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of
the State of California;

BETH MCGOWEN, in her official and individual
capacities as Presiding Judge of the Santa Clara County
Superior Court;

JULIE EMEDE, in her official and individual capacities
as Presiding Judge of the Santa Clara County Superior
Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS

(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators
acting under color of law, including but not limited to
Stephen Lowney, Andrea Flint, James Towery, Thomas
Kuhnle, Benjamin Williams, Michael Clark, and Jessica
Tenorio,

Defendants.

Case No. :

CERTIFICATE OF SERVICE

1 **EXHIBIT A-70**

2 **LITIGATION HOLD NOTICES**

3 **PRESERVATION OF EVIDENCE – ANTICIPATED FEDERAL LITIGATION**

4 **Re:** Preservation of All Records, Communications, and Evidence Related to *Kostiantyn Mars*
5 *v. State of California, et al.* (Western District of Texas) and Related Santa Clara County
6 Superior Court Matters (Case Nos. B2402220, 22FL003144, 22DV000779, and DCSS case
7 200000002626999)

8 Dear Recipient,

9 This letter constitutes a formal **Litigation Hold Notice** and demand to preserve evidence.

10
11 You are hereby notified that litigation is reasonably anticipated and has been initiated in the
12 United States District Court for the Western District of Texas. The litigation concerns alleged
13 constitutional violations, racketeering activity, and related claims arising from proceedings in
14 Santa Clara County Superior Court, including but not limited to the custody of minor child
15 Max Mars, judicial disqualification issues, and enforcement actions by the California
Department of Child Support Services.

16 **You are required to immediately take all reasonable steps to preserve** any and all
17 documents, records, communications, electronic data, videos, audio recordings, photographs,
18 notes, memoranda, and any other materials that may be relevant to the above-referenced
19 matters. This includes, but is not limited to:

- 20 ● All emails, text messages, and written communications (including internal
21 communications)
- 22 ● All court filings, orders, minute orders, transcripts, and recordings
- 23 ● All body camera footage, surveillance video, and audio recordings
- 24 ● All records related to minor child Max Mars, including visitation reports and
communications
- 25 ● All financial records, including those related to wage garnishment and 401(k) accounts
- 26 ● All records concerning judicial disqualification, change of venue requests, and
27 complaints filed with oversight bodies
- 28

1 **You must not delete, destroy, alter, or modify** any potentially relevant materials. This
2 obligation applies to all employees, agents, contractors, and third parties under your control.

3 Please confirm in writing within **seven (7) days** of receipt of this notice that you have
4 implemented appropriate litigation hold procedures and that all relevant evidence is being
5 preserved.

6 Failure to preserve evidence may result in sanctions, including adverse inference instructions,
7 monetary sanctions, and other remedies available under federal law.

8 Should you have any questions regarding the scope of this litigation hold, please contact me
9 immediately.

10
11 Sincerely,

12 
13 KOSTIANTYN MARS

14 6001 W Farmer Ln, Ste 370-448

15 Austin, TX 78727

16 Phone: (202) 505-9444

17 Email: legal@marsjustice.io
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EXHIBIT A-71

DECLARATION OF KOSTIANTYN MARS (28 U.S.C. § 1746)

I, Kostiantyn Mars, declare under penalty of perjury under the laws of the United States that:
I am the Movant and Plaintiff in this action. I have personally compiled the Consolidated
Evidence Binder - Exhibit A. Every document, transcript, recording, and exhibit contained
therein is a true and correct copy of the original or an accurate reproduction thereof prepared
pursuant to Fed. R. Evid. 1006.

Executed on June 20, 2026 in Austin, Texas.


KOSTIANTYN MARS
Pro Se

EXHIBIT A-72

SUMMARY OF EVIDENCE UNDER FED. R. EVID. 1006

Prepared Pursuant to Federal Rule of Evidence 1006

This summary is submitted to present the content of voluminous writings, recordings, transcripts, court orders, and other materials contained in this Consolidated Evidence Binder – Exhibit A. The underlying documents, which cannot be conveniently examined in court due to their volume (over 280 pages of exhibits plus supporting materials), are available for inspection upon request or as filed in this binder.

I. OVERVIEW OF THE EVIDENCE

The evidence establishes a clear, repeated, and ongoing pattern of conduct by disqualified judges, court officials, and related actors acting under color of law. This pattern includes:

- Systematic concealment and denial of timely judicial disqualifications.
- Repeated denial of custody review hearings and due process on critical parental rights matters.
- Use of void orders to enforce unlawful detention of minor child Max Mars and to facilitate international abduction.
- Extortion of money, 401(k) funds, passport, and documents through threats of incarceration and malicious prosecution.
- Fabrication of criminal charges, unlawful arrests, and issuance of void warrants.
- Retaliatory actions following Petitioner's protected speech and requests for judicial oversight.
- A consistent modus operandi that mirrors documented racketeering activity in Ukraine (2015) involving the same individuals and methods.

II. SUMMARY BY CATEGORY

Set 1 – Federal Filings and Jurisdictional Basis

Establishes federal jurisdiction under 28 U.S.C. §§ 1331, 1343, 1441, 1443, and 1455. Contains the Notice of Removal, Emergency TRO Motion, Civil RICO Complaint, and supporting authority demonstrating that the removed state proceedings involve substantial federal questions of constitutional rights, racketeering, and denial of due process.

Set 2 – Judicial Disqualifications and Void Orders

Contains verified statements of disqualification against Judges Stephen Lowney (Feb. 20, 2024 and prior), Andrea Flint (Nov. 13, 2023), and James Towery (Dec. 6, 2022 and Jan. 12, 2017). Includes official PAJAR confirmation that Presiding Judge Beth McGowen concealed these disqualifications from the Judicial Council. All subsequent orders issued by these judges after disqualification are void *ab initio* under California Code of Civil Procedure § 170.4(d).

Set 3 – Criminal Case B2402220 – Evidence in Support of Immediate Dismissal with Prejudice

Documents the fabrication of criminal charges, unlawful arrest (June 14, 2024), void bench warrants (Lowney – June 17, 2024; Williams – Aug. 21, 2024), arrest warrant (Clark – Oct. 23, 2024), and denial of access to body camera footage. Includes key statements from the Feb. 7, 2024 hearing before Judge Lowney showing extortion of money, 401(k), passport, and documents under threat of incarceration.

Set 4 – Evidence of Petitioner’s Active Pursuit of Custody Restoration and Systemic Denial of Parental Rights

Contains multiple custody review requests (2022–2024) and the consistent denial of those requests by disqualified judges. Demonstrates good-faith efforts to release Max Mars from unlawful detention and prevent international abduction to a war zone in Ukraine. Includes evidence of physical injuries to the child, supervised visitation reports, and CPS documentation.

Set 5 – Financial Extortion, Asset Seizure, and DCSS Wage Garnishment

Documents termination of employment, freeze of 401(k) account, denial of unemployment benefits, and ongoing DCSS wage garnishment exceeding \$200,000. Shows how void orders and disqualification violations were used to extract money and assets through extortionate means.

Set 6 – Pattern of Racketeering Activity and State-Level Cover-Up

Contains public records from Ukraine (2015) documenting the identical racketeering pattern (fabricated criminal charges, unlawful arrests, extortion, and hostile takeover) used by Serhii Nahorny and Ivan Omelchenko. Includes 54+ denied complaints to the California Commission on Judicial Performance and State Bar, plus correspondence to Governor Newsom, Attorney General Bonta, and federal officials that were ignored or denied.

Set 7 – Video and Audio Evidence of Extortion and Racketeering Under Color of Law

Contains audio and video recordings of court hearings showing fraud on the court, extortionate statements, denial of hearings, and physical incidents involving the minor child. Corroborates the pattern of racketeering and use of the child as leverage for extortion.

Set 8 – Service, Chain of Custody, and Authentication

Contains certificates of service, litigation hold notices, and the declaration authenticating all exhibits under Fed. R. Evid. 1006.

III. CONCLUSION

The evidence in this binder, taken as a whole, demonstrates a coordinated and continuing pattern of racketeering activity under 18 U.S.C. § 1961 *et seq.*, constitutional violations under 42 U.S.C. § 1983, and the use of void judicial orders to deprive Petitioner of fundamental parental rights and property. All originals and source materials referenced herein are available for inspection.

Executed on June 20, 2026 in Austin, Texas.


KOSTIANPYN MARS
Pro Se

APPENDIX A
MASTER CHRONOLOGICAL TIMELINE (2022–2026)

This timeline presents the key events, filings, and actions in chronological order that form the factual foundation of this Consolidated Evidence Binder.

Date	Event / Document	Exhibit	Significance
Dec 6, 2022	Verified Statement of Disqualification against Judge James E. Towery	A-9	Fifth formal disqualification of Judge Towery (2017 - 2022)
Nov 13, 2023	Verified Statement of Disqualification against Judge Andrea E. Flint	A-8	Disqualification of Judge Flint
Nov 23, 2023	Video Recordings and Photographs - Beating and coercion of Petitioner's son Max Mars by unlawful custodial during detention on Max's 8th birthday	A-43	Evidence of physical harm to Petitioner's son Max Mars inflicted by unlawful custodial during blocking contact and unlawful detention of Max Mars
Nov 28, 2023	Void Domestic Violence Restraining Order issued by Judge Andrea Flint after disqualification	A-26	Order issued by disqualified judge – void <i>ab initio</i>
Nov 29, 2023	Response to Void DVRO - Request for Release of Petitioner's son Max Mars	A-40	Direct request to release Petitioner's son

			Max Mars from unlawful detention
Jan 18, 2024	Supervised Visitation Reports and Evidence of Physical Injuries	A-44	Documentation of restricted contact and injuries to the child
Feb 7, 2024	Hearing before Judge Stephen Lowney - Key statements regarding extortion of money, 401(k), passport, and documents under threats of incarceration	A-27, A-28, A-29	Core evidence of extortion and racketeering under color of law
Feb 20, 2024	Verified Statement of Disqualification against Judge Stephen P. Lowney	A-7	Timely disqualification of Judge Lowney
Feb 20, 2024	Letter to Presiding Judge Beth McGowen requesting removal of Judge Lowney and immediate release of Max Mars	A-45	Formal request for intervention by Presiding Judge
Mar 18, 2024	Public Request to Santa Clara County Clerk’s Office to Reschedule Hearings Pending Removal of Disqualified Judge Lowney	A-19	Good-faith effort to protect due process rights
Mar 21, 2024	Denial of Change of Venue by Judge Stephen Lowney (issued after disqualification)	A-15	Order issued by disqualified judge – void <i>ab initio</i>

Apr 8, 2024	Response from Presiding Judge Beth McGowen denying removal of Judge Lowney and nullification of void orders	A-18	Denial of oversight and relief by Presiding Judge
Jun 14, 2024	Unlawful Arrest of Petitioner by Sunnyvale Police Department while attempting to protect Petitioner's abducted son Max Mars from violence and international abduction	A-32, A-64	Unlawful arrest while attempting to protect the child from violence and international abduction
Jun 17, 2024	Void Bench Warrant issued by Judge Stephen Lowney after disqualification	A-33	Warrant issued by disqualified judge <i>void ab initio</i>
Aug 21, 2024	Criminal Bench Warrant issued by Judge Benjamin Williams	A-34	Further warrant issued in the fabricated criminal case as part of racketeering attack on Petitioner by kidnappers of his son
Oct 23, 2024	Arrest Warrant issued by Judge Michael Clark	A-37	Escalation of criminal proceedings as part of racketeering attack on Petitioner by kidnappers of his son
Oct 30, 2024	Sunnyvale Police Department Denial of Access to Body Camera Recordings	A-36, A-63	Obstruction of access to exculpatory evidence
Jan 1, 2025	Santa Clara County Superior Court policy change restricting	A-23	Denial of public access to court following

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remote access to family court
hearings

Petitioner's public
requests for
accountability and
reporting criminal
members of Santa
Clara Cartel to FBI

Apr 8, 2026

Filing of Notice of Removal,
Civil RICO Complaint, and
Emergency Motion for
Temporary Restraining Order in
Western District of Texas

A-1,
A-2,
A-3,
A-4

Commencement of
federal proceedings
seeking removal,
injunctive relief, and
damages

APPENDIX B

SUMMARY CHART OF VOID ORDERS AND PREDICATE ACTS

(RICO PATTERN – 18 U.S.C. §§ 1961–1968)

This chart summarizes all **void orders** issued after judicial disqualification and the **predicate acts** of racketeering, extortion, obstruction of justice, malicious prosecution, and facilitation of child abduction that form the basis of the Civil RICO Complaint and Emergency Motion for Temporary Restraining Order.

Date	Void Order / Predicate Act	Issuing Authority	Legal Basis for Voidness / RICO Predicate	Exhibit(s)	Key Impact / Purpose of the Act
Nov 28, 2023	Void <i>ab initio</i> Domestic Violence Restraining Order (DVRO)	Judge Andrea E. Flint (post-DQ)	CCP § 170.4(d); 42 U.S.C. § 1983; 18 U.S.C. § 1962(c)	A-8, A-25, A-26	Removed custody rights; enabled international abduction of Max Mars to Ukraine; used as leverage for extortion
Feb 7, 2024	Extortion of 401(k) funds, car title, passport & documents of Max Mars under threat of incarceration and vexatious litigant order	Judge Stephen P. Lowney	18 U.S.C. §§ 1951, 1962(c); CCP § 170.4(d)	A-7, A-27, A-28, A-29	Direct financial extortion, extortion of passport of kidnapped child, and coercion to surrender custody rights

Feb 20, 2024	Continued exercise of jurisdiction after disqualification (multiple orders)	Judge Stephen P. Lowney	CCP § 170.4(d)	A-7, A-30	All subsequent orders void <i>ab initio</i>
Mar 11, 2024	Vexatious Litigant Pre-Filing Order (void ab initio, retaliatory)	Judge Stephen P. Lowney (post-DQ)	CCP § 170.4(d); 42 U.S.C. § 1983	A-14	Denied access to all California courts; silenced reporting of judicial misconduct
Mar 21, 2024	Denial of Change of Venue	Judge Stephen P. Lowney (post-DQ)	CCP § 170.4(d)	A-12, A-14	Blocked transfer to impartial venue
Jun 17, 2024	Void <i>ab initio</i> Bench Warrant	Judge Stephen P. Lowney (post-DQ)	CCP § 170.4(d); 18 U.S.C. § 1962(c)	A-33	Retaliatory warrant after Petitioner attempted to contact abducted son
Jun 17, 2024	Permanent DVRO (void <i>ab initio</i>)	Judge Stephen P. Lowney (post-DQ)	CCP § 170.4(d)	A-41	Permanently blocked contact with Petitioner's son Max Mars
Aug 21, 2024	Criminal Bench Warrant issued despite presence of Petitioner and counsel	Judge Benjamin Williams	42 U.S.C. § 1983; Due Process Clause (U.S. Const. amend. XIV)	A-34, A-35, A-67	Malicious prosecution; blocked resolution of criminal case
Oct 23, 2024	Arrest Warrant (retaliatory)	Judge Michael Clark	42 U.S.C. § 1983; 18 U.S.C. § 1962(c)	A-37	Issued immediately after request for bodycam footage of unlawful arrest

Oct 30, 2024	Denial of access to body camera recordings of June 14, 2024 arrest	Sunnyvale Police Department	42 U.S.C. § 1983; Brady v. Maryland	A-36, A-63	Obstruction of justice; concealment of exculpatory evidence
2022 - 2025	Repeated denial of all custody review hearings, DVRO trials, and final divorce trial	Judges Flint, Lowney, Towery (all post-DQ)	CCP § 170.4(d); 42 U.S.C. § 1983	A-40, A-45, A-46	Systematic denial of parental rights and due process
2023 – 2025	DCSS wage garnishment and fabricated arrears based on void orders and coerced stipulations	DCSS (Jessica Tenorio) + void orders of disqualified judges	18 U.S.C. § 1962(c); 42 U.S.C. § 1983	A-50, A-51, A-52, A-53, A-54, A-55, A-56	Theft of wages; extortion of 401(k); coercion to surrender funds in exchange for dismissal of fabricated criminal case
Apr 8, 2024	Denial of removal of disqualified Judge Lowney and nullification of all void orders	Presiding Judge Beth McGowen	42 U.S.C. § 1983; 18 U.S.C. § 1962(c)	A-17	Active concealment and ratification of racketeering enterprise
Mar 20 – Aug 8, 2024	Official confirmation that disqualifications of Flint, Lowney & Towery were concealed from Judicial Council	PAJAR (Judicial Council of California)	18 U.S.C. § 1962(c) (obstruction & cover-up)	A-11	Systemic cover-up by Presiding Judge McGowen

2022	Pattern of identical racketeering (unlawful seizure of real estate property, coercive ex-parte orders used for seizure and sale of property and business to criminal associates of disqualified judge)	Judge James Towery (Santa Clara County, California)	18 U.S.C. § 1961(5) (pattern of racketeering activity)	A-58	Demonstrates pattern of racketeering, international coordination and identical modus operandi used against Petitioner
(Santa Clara County, California)					
2015	Pattern of identical racketeering (fabricated criminal charges, unlawful arrests, extortion, hostile takeover)	Serhii “Gondon” Nahorny & Ivan Omelchenko	18 U.S.C. § 1961(5) (pattern of racketeering activity)	A-38, A-57	Demonstrates international coordination and identical modus operandi used against Petitioner
(Ukraine)					

LEGEND - PREDICATE ACT CATEGORIES

Category	Description	RICO Relevance
Judicial Disqualification Violations	All orders issued after timely Statement of Disqualification	Core voidness under CCP § 170.4(d)
Extortion under Color of Law	Demands for money, 401(k), car title, passport, and custody surrender via threats of incarceration	18 U.S.C. §§ 1951, 1962(c)
Obstruction of Justice	Denial of hearings, change of venue, nullification, bodycam footage, and access to court	18 U.S.C. § 1962(c); 42 U.S.C. § 1983
Malicious Prosecution & Fabrication of Criminal Charges	Criminal case B2402220, bench/arrest warrants, vexatious litigant order	18 U.S.C. § 1962(c)
Facilitation of Child Abduction	Void DVROs, no-contact orders, and denial of custody review enabling international abduction to Ukraine	18 U.S.C. §§ 1201, 1204 (predicate)
Financial Theft via DCSS	Wage garnishment and fabricated arrears based on void orders and coerced stipulations	18 U.S.C. § 1962(c) (theft/extortion)
State-Level Cover-Up	Concealment of disqualifications and denial of oversight by Presiding Judge McGowen	18 U.S.C. § 1962(c) (enterprise)